

THE CHARGES AGAINST KEVIN MEARS

Form of charge under Article XVIII, Section 3, Constitution and By-Laws of the International Union of Elevator Constructors (2021) · for a member's signature · Attachment 1 of 4

Local union: IUEC Local 131 · **To be filed with:** the Recording Secretary, Local 131, under Article XVIII, Section 3

Accused: Kevin Mears, withdrawn member of IUEC Local 131 (member October 2017 – June 2, 2025; former Recording Secretary). Provision cited as authority for charging a withdrawn member, Article XV(B), Section 1: “Where the withdrawn member commits any act detrimental to the International Union of Elevator Constructors or its local unions or violates any section of the International Union Constitution, he/she shall be disciplined in accordance with Article XVIII, and the discipline may also include cancellation of his/her withdrawn status.”

The drafting of this form is disclosed: the accused prepared it himself, September 9, 2026. In his September 3, 2026 notice to the members he asked that charges be brought against him; this form makes that request signable. The charging member signs to the facts, which are set out below with the pages that prove them.

COUNT 1 — Article XVIII, Section 1(1): failure to perform the Section 2 duty

Section 1(1) — “failure or refusal to adhere to or comply with the provisions of the Constitution, By-Laws, and policies of the International Union.” The provision not complied with is Article XVIII, Section 2: “It shall become the duty of any member or any officer of this Union who may come to have either direct or indirect knowledge of the commission of any of the above punishable offenses by a member, to prefer charges against such member in writing.”

Count 1 — Facts:

From January 22, 2025 until his withdrawal on June 2, 2025, the accused held, as a member, direct knowledge of a written communication of January 22, 2025 which he believed then, and states now in his own September 3, 2026 Statement of facts, to concern the commission of a punishable offense under Article XVIII, Section 1. During that period, no writing was signed by the accused as a charging member and filed with the Recording Secretary under Section 3. The duty was his while he was a member, and it was not performed. What the communication was, and whose, is outside this charge; this count rests on the accused's knowledge and his omission alone.

Count 1 — Time and place (Section 3):

The offense is a continuing omission. The time is the entire period during which the duty was live: January 22, 2025, when knowledge attached, through June 2, 2025, when membership ended by withdrawal. The place is where the duty was performable: filing with the Recording Secretary of Local 131, Albuquerque, New Mexico. Article XVIII sets out no time limit for preferring charges; timeliness, if raised, is a question for the tribunal.

Count 1 — Other sections referred to (Section 3):

Article XVIII, Section 1 (the offenses of which the accused states he had knowledge, identified in his September 3, 2026 Statement of facts); Article XVIII, Sections 2, 3 and 4; Article XV(B), Section 1.

COUNT 2 — Article XVIII, Section 1(12): the publication

Section 1(12) — “action which brings or tends to bring the International Union and/or local unions into disrepute with any bodies with which the International Union and/or local unions are affiliated, or which may bring or tend to bring the International Union and/or local unions into disrepute with the public or into conflict with the law.” Facts: beginning August 29, 2026, the accused published an account of internal union matters, and from September 3–5, 2026 entered internal union correspondence, including communications from the Local’s office, into a public, versioned repository (github.com/Bluescontact/building-9980-account) and forwarded correspondence from that office to the Local’s membership list — action charged as bringing or tending to bring the International Union and/or local unions into disrepute with the public within the meaning of Section 1(12). The accused has admitted each act in writing (September 3, 2026 Statement of facts). Time and place: August 29 – September 5, 2026, by electronic publication and email within and beyond Local 131’s jurisdiction. Proving documents: the accused’s September 3, 2026 Statement of facts and notice. Other sections referred to: Article XV(B), Section 1; Article XVIII, Sections 2–4.

Statement of the accused, standing:

From the Statement of facts of September 3, 2026, placed before the members and the Office of the General President: “The same Section 2 reached me. I held the January 22, 2025 reply as a member from that date until my withdrawal on June 2, 2025. I did not prefer charges in writing.” The operative proving document for these counts is the accused’s own writing: the September 3, 2026 Statement of facts, sent to this membership that day. The public repository (github.com/Bluescontact/building-9980-account) is convenience, not the exhibit. The accused’s standing word, from the same Statement: “I will answer any notice served under Article XVIII, Section 4.”

Charging member’s basis of knowledge (Section 2 — indirect knowledge):

I have read the accused’s September 3, 2026 Statement of facts, sent to this membership, and I sign on that knowledge.

Charging member (Section 3 — “signed by the member making the charge”):

Name: _____ Signature: _____ Date: _____

To be filed with the Recording Secretary, Local 131, on: _____ Received by: _____

Sources: IUEC Constitution and By-Laws (2021), published at iuec.org — Art. XVIII §§1(1), 1(12) and 2 quoted verbatim above, §§3–4 referred to (pp. 27–31); Art. XV(B) §1 quoted verbatim (p. 23). Every underlying act charged is admitted in the accused’s own writings named above. The September 3, 2026 Statement of facts went to this membership that day and stands in the public record.